THE STATE

Versus

PETER DUBE

HIGH COURT OF ZIMBABWE
MUTEVEDZI J
GWERU, 26 November 2025.

T. R. Takuva with *K. Shava* & *T. Mutarisi* for the State
Z. Ndlovu for D. Charamba for the offender

Assessors
Mr I. M. Kabura
Ms. N. Majenda

Criminal Trial- Sentencing Judgment

MUTEVEDZI J: Men who kill or brutalise women on the pretext that their actions are driven by passion are nothing but hopeless cowards. It is senseless to claim to love a woman to the extent of murdering her. In fact, my view is that every woman including those that are married are permitted to love and unlove men. It is the reason why the courts are granting decrees of divorce in their thousands each year. The actions and baseless claims of Peter Dube (the offender), typify the stupidity of men who think that they have the divine authority to enslave the women they claim to love. Such men suffer from the depraved mentality that if they cannot have the woman, no one will. But the sooner each man realises that there is always a better man than him, the safer the world will become for everyone.

[1] Peter Dube suspected that his wife, Nyasha Nharingo (Nyasha) had an extra marital relationship. Surprisingly and by his own admission, he had only paid a token to the woman's parents as an acknowledgement that he was cohabiting with her. Being the coward that he was, the offender did not confront Nyasha to resolve the adultery allegations, if there was any. Instead, he adopted the scorched policy, a wartime strategy invented and popularized by the great military general Tshaka Zulu. He set out to obliterate

Nyasha and everything around her which could possibly remind him of the supposed infidelity.

[2] In his violent, uncontrollable and blinding but no doubt misplaced anger, he shot and killed a man called Shelton Chiduku (Shelton) and a woman called Gamuchirai Mudungwe (Gamu) in cold blood. Satisfied that the two were dead, he turned his gun on Nyasha and her sister called Nyaradzo Nharingo (Nyaradzo). The injuries that the two women sustained were horrific. The bullet that hit Nyasha went through one of her eyes and exited via the neck. The doctor who examined her injuries observed that in addition to the eye injuries, the base of her skull was fractured. Nyaradzo on the other hand was shot behind her left ear with the bullet exiting through the orbit of her right eye. It was completely raptured. She lived a life which was described by her daughter as miserable until she died of those wounds some time later. Given the severity of the wounds, the survival of the two sisters at the time of the shooting was both inexplicable and surreal. It could only have been a demonstration of God's immeasurable love for them.

[3] Like we described in the main judgment, the offender skipped the jurisdiction of this court soon after the gruesome murders and the unconscionable attempted murders. He first went into South Africa, then into Eswatini before flying to Ireland where he lived and became employed. To him, the deaths and injuries of his victims must have meant very little if anything. But the proverbial long arm of the law finally caught up with him. He was then extradited back to Zimbabwe via Mozambique to face the consequences. At his trial, he raised the defence of mental disorder at the time of the commission of the crime. Although that defence was supported by one psychiatrist, it was thoroughly discredited by another with the support of irrefutable evidence on the ground. We had no hesitation to throw out that defence as we found it preposterous and convicted the offender.

[4] It is on the basis of the above that the court is called upon to assess appropriate sentences for each of the offences that the offender stands convicted of. The law provides that upon the conviction of an offender on a charge of murder, the court's point of departure is, as a rule, the assessment of whether or not the murder was committed in aggravating circumstances. This was well explained by MUREMBA J in the case of *S* v *Chaira* HH99-24 where she put it thus:

> "The law distinguishes between a murder which was committed in aggravating circumstances and a murder which was not committed in aggravating circumstances. The applicable penalties are different in the two scenarios. This is provided for in s47(4) of the Criminal Law Code and in the sentencing guidelines in S.I146/23. For an offence committed in aggravating circumstances, the penalty if death, imprisonment for life or imprisonment for any definite period of not less than 20 years. In terms of the sentencing guidelines the presumptive penalty is 20 years' imprisonment. Therefore, in each murder trial, before sentencing an accused, the court must first determine if the murder was committed in aggravating circumstances in terms of s 47(2) and (3) of the Criminal Law Code and as listed in the sentencing guidelines."(underlining is my emphasis added)

[5] Section 47(4) of the Criminal Law (Codification and Reform) Act [*Chapter 9:*23] ("the CODE") provides that:

> (4) A person convicted of murder shall be liable—
> (*a*) subject to sections 337 and 338 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], to imprisonment for life or imprisonment for any definite period of not less than twenty years, if the crime was committed in aggravating circumstances as provided in subsection (2) or (3); or
> (*b*) in any other case to imprisonment for any definite period.

Clearly therefore, there are two separate regimes for the sentencing of murder convicts. The sentences or at least the assessment thereof, in the two categories is entirely different. Where a court finds the existence of one or more aggravating factors, it is bound to take one of two choices. The first is that it may sentence the offender to life imprisonment. The second is that it can elect to sentence him or her to a determinate term of imprisonment with the rider that such term may not fall below twenty years. In other words, a person convicted of murder committed in aggravating circumstances can only be punished with a minimum mandatory sentence of twenty years imprisonment and up to life imprisonment. How a court chooses between life imprisonment and a determinate term is informed by other general mitigating and aggravating circumstances surrounding the case and or its commission. In *S* v *Kamupiro* HH242-24 it was held that:

> "The choice of sentence is predominantly swayed by the weight of the mitigating and aggravating factors submitted by the defence and the prosecution."

[6] The question of what constitutes a circumstance which can elevate a murder to the realm referred to as aggravated has largely been legislated. Such factors appear under subsections (2) and (3) of s 47 of the CODE. We will return to deal with that aspect later in this sentencing judgment. In addition, subsection (5) provides the elasticity which allows a court determining the gravity of a murder to deem and add to the factors stated under subsections (2) and (3) anything else which it may find as worsening a murder. Put in another way, the court is permitted to extend the list of aggravating circumstances given in

the statute. It is for that reason that additional aggravating factors were provided for under the Criminal Procedure (Sentencing Guidelines) Regulations, 2023 (the Guidelines). That proposition was restated in *S* v *Chaira (supra)* wherein it was held that:

> "However, the court is not limited to the listed aggravating circumstances. Both the Criminal Law Code and the Sentencing Guidelines state that the listed aggravating circumstances are not exhaustive."

[7] In this case, prosecution submitted that the murder was aggravated. First, Mrs *Takuva* said the offender's actions were premeditated and demonstrated a blatant disregard for human life. She added that the murder was one of two or more murders committed by the accused during the same episode. Third, the prosecutor said the two deceased persons were killed in a public place. As a result, of the presence of the stated aggravating factors, the State urged the court to sentence the offender to life imprisonment on each of the murder counts.

[8] Further the prosecutor directed us to the victim impact statements, in which the authors detailed the psychological trauma and financial hardships they are suffering following the deaths of their loved ones. She further submitted that the offender did not show any remorse after the killings. Instead, he fled the country in a bid to evade justice. That on its own, so the State further argued, suggested that the offender intended to undermine the administration of justice. In support of its proposal for life imprisonment, prosecution referred the court to various authorities which included *S v Charles Sumani and Anor* HH75-2000; *Augustine Gonese v The State* S-21-96; and *Bigboy Ncube v The State* S-178-98. All those authorities indeed support that invariably a murder committed in circumstances such as described above must attract the severest sentences available. In days gone by, such murders could attract capital punishment.

[9] In mitigation for the offender, *Mr Charamba* started from the general personal circumstances of the offender. He advised us that the offender is aged 46 years and is a polygamist, married to two wives. Evidently, counsel forgot to advise us that one of the two wives is the victim in the first count of attempted murder. It is unimaginable that the two are still married especially if regard is had to the misgivings and lamentations that Nyasha portrays in her victim impact statement. We were further told that the offender is a father to six minor children; that he is a mental patient who also suffers from a condition called hernia for which he is waiting to undergo surgery. On the commercial side, Mr *Charamba* said the offender owns four motor vehicles valued around USD$50 000, a house

in a suburb called Woodlands Park in Gweru and a mineral processing plant at Gwanda. Further, it was argued that the offender through his relatives paid twenty beasts and USD$ 15000 to the relatives of the deceased. We must hasten to state that the statement was not supported by any evidence. If the offender had genuinely compensated the deceased persons' relatives, he ought to have specified which deceased person was paid what. To lump the compensation together would make it look like the compensation was joint. But that clearly was impossible. Shelton and Gamu were not related. They hailed from separate families. As such the unexplained claim of compensation would not serve any tangible purpose. To be of any benefit, an offender must clearly state the nature and value of compensation for each of his victims, how it was given, the purpose for which the compensation was made and the significance if any of such reparations. To counter the allegations of compensation, the State tendered affidavits deposed to by Percy Dzvuka Mudungwe, an uncle to Gamu. He is the patriarch of the Mudungwe family. In the affidavit he indicated in no uncertain terms that the Mudungwe family had not received a dime from the offender. In similar fashion, Tabitha Chiduku, who is mother to Shelton equally refuted the compensation claims by the offender. She stated that they had not received anything from him. Clearly therefore, those claims by the offender are a red herring. Further, in his haste to convince the court that he paid reparations for his crimes, the offender forgot to advise us what if anything, he did for the Nharingo sisters who he severely injured. Like Shelton and Gamu, Nyaradzo actually later died. What this does is to further demonstrate the kind of person that the offender is. He is disingenuous, deceitful and impenitent. We are not persuaded by his lies and throw out his compensation submissions with the contempt that they deserve.

[10] It was right at the end of his submissions that counsel attempted to address the critical question of whether or not the murder was aggravated. He refuted the allegation by the state that the offender premediated the murders. Instead, his view was that the offender acted out of passion, a notion that we dispelled right at the beginning of this judgment. He then suggested that the offender be sentenced to 20 years imprisonment on each count of murder which the court could order to run concurrently. He rounded off by imploring the court to note that the offender was persecuted on social media and that he will forever live

with the stigma of killing his victims. Once again, I wish to state that in this day and era, where the right to information appears to be at par with the right to life itself, a person who murders two people and attempts to kill two others cannot be heard to complain that he made news headlines. The public has a right to that information. Such conduct is therefore cannon fodder to journalists and some members of the public whose lives are inseparable from the social media. The offender is thus wrong to view that as persecution.

[11] We must be upfront that given the submissions made by prosecution, the court is no doubt that the two murders were committed in aggravating circumstances. First, the argument that the offender preplanned the commission of the crimes cannot be wished away. The evidence which we accepted is that earlier that day, the offender had exhibited signs which suggested that he intended to take some drastic measures. He suddenly advised their house helper, Nyaradzo's daughter and Nyasha's child from a previous marriage to vacate his residence. In addition, he had kept his gun in the car. Throughout the trial, he never explained what he needed that gun for or why if it was for his personal security, he had kept it hidden in the car. When the time to use it came, he did not hesitate to retrieve it and attack his victims whom he carefully selected from the many people he could have shot. But as this court has emphasised, the law is clear that premeditation standing on its own is not an aggravating factor. It has to be combined with other aggravating circumstances or must exist in instances where there isn't any significant mitigation. I had an opportunity to explain this preposition in *S* v *Katsande* HH263-24 where l said:

> "In *casu*, the prosecutor raised a number of issues which she argues amounted to aggravation. The first related to premeditation. It is an aspect often mentioned by prosecutors when they scrounge around to find something that may aggravate a murder which they find particularly reprehensible and wish to see the offender send to the gallows. Much as the factor appears to be a case of shooting fish in a barrel, it actually represents a very long shot at aggravation. I conclude so because of the way it is couched in s 47(4) of the Code. That section provides that:-
>
> > *"(3) A court may also, in the absence of other circumstances of a mitigating nature, or together with other circumstances of an aggravating nature, regard as an aggravating circumstance the fact that:-*
> >
> > *(a) the murder was premeditated"*
>
> What the above means is that premeditation, standing on its own, cannot aggravate a murder. For it to, it must be show that either there is nothing that lessens an offender's moral blameworthiness or that there are other aggravating circumstances to which it may be cojoined." (underlining is my emphasis)

Unfortunately for the offender, in this case, there is numerous other aggravating factors that crucify him and make premeditation relevant.

[12] Section 47(2)(b) of the CODE provides that a murder shall be aggravated where it was one of two or more murders committed by the accused during same episode or was one of a series of two or more murders committed by the offender over a period of time. In *casu,* the offender killed two people in the blink of an eye. He severely injured two others in that same episode. One of those victims died some time later. It was only by some inadvertence by prosecution that the offender escaped a third count of murder in that regard. Clearly therefore his actions fall within the ambit of s 47 (2) (b). We may add that it must be an additional aggravating circumstance, such as in this case, that a person attempted to kill another or others in the same episode where he committed the murder he is convicted of.

[13] Section 47(2)(d) of the CODE further provides that a court must treat as an aggravating circumstance, the fact that the victim was murdered in a public place. That it is was settled in the case of *S* v *Masango* HH726-16 where it was held that:

> "In terms of s 47 (2) (d) the court must take into account the fact that "the victim was murdered in a public place….."

[14] In previous decisions, this court has criticised the prosecution for randomly throwing this factor around in what usually is a fishing expedition for aggravating circumstances. That criticism stemmed from the fact the law qualifies the public killings. The murder should not only have ben in public but must have been committed by the use of means such as fire, explosives or the indiscriminate firing of a weapon which caused or involved a substantial risk of injury to innocent by-standers as envisaged in s47(2)(d) of the CODE. The qualification of the use of the means stated envisage a murder in public, through the use of weapons which once deployed, the offender may have little to no control over. Such means have the potential to injure people other than the offender's intended victims. In this case, the State's contention that the murders were in public is apposite. The offender used as firearm. The deceased persons were shot in a car park. The danger that the bullets could have missed their targets or ricocheted and hit innocent by-standers is real. We therefore accept it is a circumstance that aggravated these murders.

[15] Added to the above catalogue of aggravating circumstances is the fact that the offender used a lethal weapon in the execution of the crimes as provided for in the Sentencing guidelines. He shot the deceased persons at very close range. He must have at

that time, reconciled with his determination to kill the two. Thereafter, he did not choose to walk away but chose to climb the staircase further determined to end more lives. Murders committed in such fashion tend to be more heinous than spontaneous ones or those resulting from drunken brawls.

[16] Having decided that the murders were aggravated, the court's decision as regards sentence becomes squarely pinned to the two options that we spoke of earlier. The offender must be sentenced to either life imprisonment or a determinate term of not less than twenty years on each count. Which one to take must be premised on the aggravation and the mitigation presented and accepted by the court. We have already detailed the two versions above. The only weighty issue which deserves our serious consideration is that the offender alleges mental illness. But that must be examined in the context that we fully rejected his defence of mental disorder at the material time. He certainly wasn't mentally disordered at the time of his trial. There is no allegation that he is disordered as we hand down this sentencing judgment. He must therefore be treated like any other normal convict. That he may be normal under medication does not detract from the fact of his being normal. If he is imprisoned and his mental health deteriorates to level which require other measures to be employed, s 30 of the Mental Health Act [Chapter 15;12] provides mechanisms of dealing with convicted prisoners who become mentally ill.

[17] The victim impact statements submitted by Shelton's son and Gamu's sister paint a gloomy picture of their lives after the deaths of their loved ones. Shelton's son sounds hopeless. He describes the misery of losing a father and breadwinner. His grandfather developed hypertension soon after his son died. He couldn't fight it and ended up dead as a result. He revealed that the further problem caused by his father's death was that relatives were no longer seeing eye to eye after fights regarding the winding up of the deceased's estate erupted and tore relations apart. It can only be sad. Gamu's sister said she was the pivot of the family and many issues went astray when she died. She left behind a little girl who is now twelve years old. The girl is still struggling to understand what happened to her mother and why she was so unfortunate to lose a parent in such violence. But perhaps the most heart-rending accounts were from Nyasha and Nyaradzo Nyasha said her trauma did not only result from the shooting but that the offender had always been an abusive

husband. To compound her troubles, she stated that her own family members relentlessly blame her for having married a murderer. She said she does not understand what wrong she committed to deserve such treatment. As a result, she feels ostracised not only by her family but by the entire community she lives in. To cap it all, she says she has lost trust in all men. Even the devil himself can feel for her. It is true that life can be cruel.

[18] Nyaradzo submitted her victim impact statement before she died. She hoped to survive but it wasn't to be. Her account can only make sense if we reproduce it in her own words. She said: -

> "I was shot on the right eye. in fact, the bullet went through the right ear and protruded through the right eye. I am one eyed and my right jaw is deformed and I cannot eat properly. Because of this happening, I lost my job and have impaired vision. I need to be assisted on a daily basis. I am a single mother of one. I am emotionally and psychologically drained. My lifestyle has been negatively impacted. I can't freely mingle with other people. I have no life outside my father's premises. I suffer from continues headaches. I am surviving because of the grace of God."

[19] Detailing more of her sorrows, Nyaradzo further disclosed in her statement that before the tragic shootings, she was employed as a manager at a hotel in South Africa. During happier times, she had not only lent the offender R26 000 but had also given him her honda fit vehicle valued at USD$8 500 which she wanted him to swap with a higher value car. She was hopeless that she would recover anything from the offender. What is painful is that despite her tribulations arising from her unexpected and man-inflicted disabilities, she had the hope that she would live. Unfortunately, she died even before she the offender had been brought to justice.

[20] The above can only demonstrate how callous the offender was. The issues which aggravate the offender's moral blameworthiness far outstrip anything that he may have submitted in mitigation. We agree with prosecution's view that he had a total disregard for human life. He is clearly a sadist and a psychopath who treated his victims simply like objects. In the case of *S* v *Nyathi* A-12-74 at p5 Beadle CJ stated that:

> "[i]t is true that judged by the standards of the ordinary decent man, the appellant is an abnormal man, but there are few criminals who commit cold blooded murders, and who are sentenced to death for those murders. There is some element of abnormality about all criminals who commit cold blooded brutal crimes of murder. The question here is to decide when that abnormality reaches a stage which justifies a court in imposing a sentence less than death. It would be highly undesirable, in my view, to attempt to lay down any hard and fast rules which would indicate when such abnormality was sufficiently great and when it was not. Each case must be judged on its own merits. The judge must make a value judgment and decide whether the circumstances are such, when

> all…the merits of the case are weighed up, as to justify the imposition of a sentence other than death."

[21] Needless to state, his LORDSHIP was speaking during a time when the death penalty was still applicable. The sentiments expressed therein do not betray any hesitation to imprison such criminals for life. In this case, we agree and have already determined that the offender was not mentally disordered. His abnormality only stemmed from his heartlessness and indifference to human life. Had capital punishment not been abolished, this is a case in which there was no escaping its imposition. As such, it remains to be stated that the offender deserves the severest penalty available. He is a criminal with whom the courts cannot take chances. He cannot be allowed back into society. Even his own family does not deserve to live with a monster like him.

[22] For the above reasons, we cannot think of any punishment which is sufficient to appease the families of the deceased persons and the remaining victim of the attempted homicides. Any determinate term of imprisonment may not be enough to placate the anger of the communities which the offender wronged. The only option is to permanently remove him from society. Mr *Charamba* urged us to consider ordering the penalties for the murders to run concurrently. We however wish to repeat the long-held view expressed in the case of *S* v *Chirembwe* HH162-15 that ordering life terms to run concurrently is a ridiculous and futile exercise.

[23] Accordingly, the offender is sentenced as follows: -

Count 1 Murder- LIFE IMPRISONMENT

Count 2- Murder – LIFE IMPRISONMENT

Count 3- Attempted murder – 10 years imprisonment

Count 4- Attempted murder- 10 years imprisonment

MUTEVEDZI J……..